

CUI//SP-PROCURE//DL-ONLY

Justification for Other than Full and Open Competition – FAR Part 13 Acquisitions under the SAT

MEMORANDUM TO THE FILE

Subj: JUSTIFICATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION FOR A FAR PART 12 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 12.102(a) This memorandum documents the determination that, for this acquisition valued at or below the Simplified Acquisition Threshold (SAT), only one source is reasonably available. This memorandum further outlines the basis supporting that determination.

II. F ITEM OR SERVICE:

The TMDE Division maintains Test Program Sets (TPS) for use by Marine Corps electronic equipment maintainers. The TPSs are used on Automatic Test Equipment (ATE) deployed to the Fleet Marine Force (FMF). Automatic Test Equipment, such as the AN/USM-717 (V)1 have the TYX run-time software installed and executes the TPSs. Keeping the TYX PAWS and run-time software in escrow enables the Marine Corps to maintain a stable release of the software. Astronics is the required source; TYX Personal Atlas Workstation (PAWS) is the software; required delivery

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. ☒ ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ☐ RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. ☒ EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

The software is a proprietary product of Astronics Test Systems. The software source code is kept in escrow for the Marine Corps. Astronics Test Systems is the only entity that can provide this support as it is the owner of the software source code. The code is proprietary and there are no other companies to provide this capability.

3. ☐ OTHER REASONS.

Controlled by: DON, USMC, I&L HCA
Controlled by: MARCORLOGCOM MCFCs
CUI Category(ies): PROCURE
Limited Dissemination Control: DISPLAY ONLY
POC: MARCORLOGCOM Contracts Department

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B. ☐ **BRAND NAME**

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104).

Describe how market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.

C. ☐ **URGENT AND COMPELLING.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified: _____
2. Required delivery date/period of performance: _____
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
Explain the impact to the mission if the date above is not met, any special circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATIONS:

A. **Technical / Requirements Certification:** I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.


Signature

Patricia Kay Rowland (229) 639-7789
Name (Printed) / Phone #

13 APRIL 2026
Date

B. **Contracting Officer Certification:** I certify that this justification is accurate and complete to the best of my knowledge and belief.

ALEXANDER.JASON.CARL.1275814802

Digitally signed by ALEXANDER.JASON.CARL.1275814802
Date: 2026.04.10 12:02:31 -04'00'

Signature

Name (Printed) / Phone #

Date